

**SUBSTITUTE FOR  
HOUSE BILL NO. 4644**

A bill to amend 1949 PA 300, entitled  
"Michigan vehicle code,"  
by amending section 657a (MCL 257.657a), as amended by 2018 PA 139.

**THE PEOPLE OF THE STATE OF MICHIGAN ENACT:**

1       Sec. 657a. (1) A village or city having a population of fewer  
2 than ~~30,000~~ **65,000** individuals based ~~upon~~ **on** the ~~2010~~ **most recent**  
3 **federal** decennial census may by resolution allow the operation of  
4 golf carts on the streets of that village or city, subject to the  
5 requirements of this section. A township having a population of  
6 fewer than ~~30,000~~ **65,000** individuals based ~~upon~~ **on** the ~~2010~~ **most**  
7 **recent federal** decennial census may by resolution, unless  
8 disapproved by the county board of commissioners under subsection  
9 (3), allow the operation of golf carts on the streets of that



1 township, subject to the requirements of this section.

2 (2) If a village, city, or township allows the operation of  
3 golf carts on the streets of that village, city, or township, that  
4 village, city, or township may require those golf carts and the  
5 operators of those golf carts to be recorded on a list maintained  
6 by that village, city, or township. A village, city, or township  
7 shall not charge a fee for listing golf carts or the operators of  
8 those golf carts.

9 (3) A county board of commissioners may, by resolution,  
10 disapprove the operation of golf carts on the streets of a township  
11 located within that county if the county board of commissioners  
12 conducts a hearing and determines that 1 or more of the following  
13 apply:

14 (a) The operation of golf carts on the streets of that  
15 township would cause significant environmental damage.

16 (b) The operation of golf carts on the streets of that  
17 township would cause a significant concern of public safety.

18 (4) The county board of commissioners shall provide public  
19 notice of a hearing under subsection (3) at least 45 days before  
20 the hearing is conducted. The county board of commissioners shall  
21 also provide written notice of a hearing under subsection (3) to  
22 the township at least 45 days before the hearing is conducted.

23 (5) ~~A person~~ **An individual** shall not operate a golf cart on  
24 any street unless ~~he or she~~ **the individual** is at least 16 years old  
25 and is licensed to operate a motor vehicle.

26 (6) The operator of a golf cart shall comply with the signal  
27 requirements of section 648 that apply to the operation of a  
28 vehicle.

29 (7) ~~A person~~ **An individual** operating a golf cart ~~upon~~ **on** a



1 roadway shall ride as near to the right side of the roadway as  
2 practicable, exercising due care when passing a standing vehicle or  
3 a vehicle proceeding in the same direction.

4 (8) Except as otherwise provided in subsection (9), ~~a person~~  
5 **an individual** shall not operate a golf cart on a state trunk line  
6 highway. This subsection does not prohibit ~~a person~~ **an individual**  
7 from crossing a state trunk line highway when operating a golf cart  
8 on a street of a village, city, or township, using the most direct  
9 line of crossing.

10 (9) The legislative body of a local unit of government **having**  
11 **a population of not more than 30,000 based on the most recent**  
12 **federal decennial census** may request the state transportation  
13 department to authorize the local unit of government to adopt an  
14 ordinance authorizing the operation of golf carts on a state trunk  
15 line highway, other than an interstate highway **or a freeway,**  
16 located within the local unit of government. The request ~~shall~~ **must**  
17 describe how the authorization would meet the requirements of  
18 subsection (10). The state transportation department shall solicit  
19 comment on the request from the local units of government where the  
20 state trunk line highway is located. The state transportation  
21 department shall consider comments received on the request before  
22 making a decision on the request. The state transportation  
23 department shall grant the request in whole or in part or deny the  
24 request not more than 60 days after the request is received. If the  
25 state transportation department grants a request in whole or in  
26 part under this subsection, the local unit of government that  
27 submitted the request may adopt an ordinance authorizing the  
28 operation of golf carts on the state trunk line highway that was  
29 the subject of the request. A county may submit a request for



1 authorization under this subsection on behalf of 1 or more local  
2 units of government located within that county if requested by  
3 those local units of government.

4 (10) The state transportation department shall authorize **the**  
5 operation of a golf cart under subsection (9) only on a state trunk  
6 line highway that is not an interstate highway **or a freeway** within  
7 a local unit of government **having a population of not more than**  
8 **30,000 based on the most recent federal decennial census** that has  
9 already adopted an ordinance under subsection (1), that serves as a  
10 connector between portions of the local unit of government that  
11 only connect through the state trunk line highway, and that meets 1  
12 or more of the following requirements:

13 (a) Provides access to tourist attractions, food service  
14 establishments, fuel, motels, or other services.

15 (b) Serves as a connector between 2 segments of the same  
16 county road that run along discontinuous town lines.

17 (c) Includes a bridge or culvert that allows a golf cart to  
18 cross a river, stream, wetland, or gully that is not crossed by a  
19 street or county road on which golf carts are authorized to operate  
20 under an ordinance adopted as provided in subsection (1).

21 (11) The state transportation department may permanently or  
22 temporarily close a state trunk line highway to the operation of  
23 golf carts otherwise authorized under subsection (9) after written  
24 notice to the clerk of the local unit of government that requested  
25 the authorization under subsection (9). The notice ~~shall~~**must** be in  
26 writing and sent by first-class United States mail or personally  
27 delivered not less than 30 days before the adoption of the rule or  
28 order closing the state trunk line highway. The notice ~~shall~~**must**  
29 set forth specific reasons for the closure. The state



1 transportation department is not required to develop a plan for an  
2 alternate route for a state trunk line highway that it has  
3 temporarily closed to the operation of golf carts.

4 (12) Where a usable and designated path for golf carts is  
5 provided adjacent to a highway or street, ~~a person~~ **an individual**  
6 operating a golf cart may, by local ordinance, be required to use  
7 that path.

8 (13) ~~A person~~ **An individual** operating a golf cart shall not  
9 pass between lines of traffic, but may pass on the left of traffic  
10 moving in ~~his or her~~ **the individual's** direction in the case of a 2-  
11 way street or on the left or right of traffic in the case of a 1-  
12 way street, in an unoccupied lane.

13 (14) A golf cart ~~shall~~ **must** not be operated on a sidewalk  
14 constructed for the use of pedestrians.

15 (15) A golf cart ~~shall~~ **must** be operated at a speed not to  
16 exceed 15 miles per hour and ~~shall~~ **must** not be operated on a state  
17 trunk line highway or a highway or street with a speed limit of  
18 more than 30 miles per hour except to cross that state trunk line  
19 highway or highway or street. A village, city, or township may, by  
20 resolution, designate roads or classifications of roads for use by  
21 golf carts under this subsection.

22 (16) A golf cart ~~shall~~ **must** not be operated on a state trunk  
23 line highway or the streets of a city, village, or township during  
24 the time period from 1/2 hour before sunset to 1/2 hour after  
25 sunrise.

26 (17) ~~A person~~ **An individual** operating a golf cart or who is a  
27 passenger in a golf cart is not required to wear a crash helmet.

28 (18) ~~A person~~ **An individual** operating a golf cart on a state  
29 trunk line highway shall ride as near to the right side of the



1 roadway as practicable.

2 (19) This section does not apply to a police officer in the  
3 performance of ~~his or her~~ **the police officer's** official duties.

4 (20) A golf cart operated on a street of a village, city, or  
5 township under this section is not required to be registered under  
6 this act for purposes of section 3101 of the insurance code of  
7 1956, 1956 PA 218, MCL 500.3101.

8 (21) As used in this section, "golf cart" means a vehicle  
9 designed for transportation while playing the game of golf. A  
10 village, city, or township may require a golf cart registered  
11 within its jurisdiction to meet any or all of the following vehicle  
12 safety requirements of a low-speed vehicle for approval under this  
13 section:

14 (a) At least 2 headlamps that comply with section 685.

15 (b) At least 1 tail lamp that complies with section 686.

16 (c) At least 1 stop lamp and 1 lamp or mechanical signal  
17 device that comply with sections 697 and 697b.

18 (d) At least 1 red reflector on each side of the golf cart as  
19 far to the rear as practicable and 1 red reflector on the rear of  
20 the golf cart as required for low-speed vehicles by 49 CFR 571.500.

21 (e) One exterior mirror mounted on the driver's side of the  
22 golf cart and either 1 exterior mirror mounted on the passenger  
23 side of the golf cart or 1 interior mirror as required for low-  
24 speed vehicles by 49 CFR 571.500.

25 (f) Brakes and a parking brake that comply with section ~~704.~~  
26 **705.**

27 (g) A horn that complies with section 706.

28 (h) A windshield that complies with section 708a.

29 (i) A manufacturer's identification number permanently affixed



1 to the frame of the golf cart.

2 (j) Safety belts that comply with section 710a and that are  
3 used as required by section 710e.

4 (k) The crash helmet requirements applicable to low-speed  
5 vehicles under section 658b.